plainly, and directly discharge them of their subjection. For consequences of words, are not the signes of his will, when other consequences are signes of the contrary; but rather signes of errour, and misreckonning; to which all mankind is too prone.

The bounds of that Power, which is given to the Representative of a Bodie Politique, are to be taken notice of, from two things. One is their Writt, or Letters from the Soveraign: the other is the Law of the Common-wealth.

By Letters Patents:

For though in the Institution or Acquisition of a Common-wealth, which is independent, there needs no Writing, because the Power of the Representative has there no other bounds, but such as are set out by the unwritten Law of Nature; yet in subordinate bodies, there are such diversities of Limitation necessary, concerning their businesses, times, and places, as can neither be remembred without Letters, nor taken notice of, unlesse such Letters be Patent, that they may be read to them, and withall sealed, or testified, with the Seales, or other permanent signes of the Authority Soveraign.

And the Lawes.

And because such Limitation is not alwaies easie, or perhaps possible to be described in writing; the ordinary Lawes, common to all Subjects, must determine, what the Representative may lawfully do, in all Cases, where the Letters themselves are silent. And therefore

When the Representative is one man, his unwarranted Acts are his own onely.

In a Body Politique, if the Representative be one man, whatsoever he does in the Person of the Body, which is not warranted in his Letters, nor by the Lawes, is his own act, and not the act of the Body, nor of any other Member thereof besides himselfe: Because further than his Letters, or the Lawes limit, he representeth no mans person, but his own. But what he does according to these, is the act of every one: For of the Act of the Soveraign every one is Author, because he is their Representative unlimited; and the act of him that recedes not from the Letters of the Soveraign, is the act of the Soveraign, and therefore every member of the Body is Author of it.

When it is an Assembly, it is the act of them that assented onely.

But if the Representative be an Assembly; whatsoever that Assembly shall Decree, not warranted by their Letters, or the Lawes, is the act of the Assembly, or Body Politique, and the act of every one by whose Vote the Decree was made; but not the act of any man that being present Voted to the contrary; nor of any man absent, unlesse he Voted it by procuration. It is the act of the Assembly, because Voted by the major part; and if it be a crime, the Assembly may be punished, as farre-forth as it is capable, as by dissolution, or forfeiture of their Letters, (which is to such artificiall, and fictitious Bodies, capitall,) or (if the Assembly have a Common stock, wherein none of the Innocent Members have propriety,) by pecuniary Mulct. For from corporall penalties Nature hath exempted all Bodies Politique. But they that gave not their Vote, are therefore Innocent, because the Assembly cannot Represent any man in things unwarranted by their Letters, and consequently are involved in their Votes.

When the Representative is one man, if he borrow

If the person of the Body Politique being in one man, borrow mony of a stranger, that is, of one that is not of the same Body, (for no Letters need limit borrowing, seeing it is left to mens own inclinations